



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36025501

Date: JAN. 13, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner seeks employment-based second preference (EB-2) immigrant classification for the Beneficiary as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this EB-2 classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Nebraska Service Center denied the petition, concluding that the Beneficiary qualified for classification as a member of the professions holding an advanced degree, but that the Petitioner had not established that a waiver of the required job offer, and thus of the labor certification, would be in the national interest. The matter is now before us on appeal.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish the beneficiary is an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act. If a petitioner establishes the beneficiary's eligibility for the underlying EB-2 classification, they must then demonstrate that the beneficiary merits a discretionary waiver of the job offer requirement "in the national interest." Section 203(b)(2)(B)(i) of the Act. *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016), provides the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S. Citizenship and Immigration Services (USCIS) may, as matter of discretion,¹ grant a national interest waiver if the petitioner demonstrates that:

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and

¹ *See Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Third, Ninth, Eleventh, and D.C. Circuit Courts of Appeals in concluding that USCIS' decision to grant or deny a national interest waiver is discretionary in nature).

- On balance, waiving the job offer requirement would benefit the United States.

Id.

II. ANALYSIS

The Director found that the Beneficiary qualifies as a member of the professions holding an advanced degree. The remaining issue to be determined is whether the Petitioner has established that a waiver of the requirement of a job offer, and thus a labor certification, would be in the national interest. For the reasons discussed below, we conclude that the Petitioner has not sufficiently demonstrated the national importance of the Beneficiary's proposed endeavor under the first prong of the *Dhanasar* analytical framework.

At the time of filing, the Beneficiary was working for the Petitioner as a Senior Electrical Test Process Engineer.² The Petitioner indicated that the Beneficiary's responsibilities in this capacity include:

- Developing, deploying, and inventing new technology within [redacted] manufacturing process.
- Working on [the Petitioner's] most advanced technology, working across multiple technology facilities within the [redacted]
- Execute the [redacted] Testing Development Process from AFI through Start of Regular Production (cradle to grave).
- Actively support primarily the GPS build events at the labs, pre-production facilities and assembly plants . . . through development of testing processes, tooling, equipment and complementing quality planning tools, and support for problem solving activities.
- Collaboratively work with a cross-functional team of engineers to refine the testing process and then lead the execution of the M&E and tooling procurement, installation, debug, start up and launch in the assembly plant(s).
- Support other team member projects across [redacted]

Regarding the Beneficiary's proposed endeavor, the Petitioner initially indicated that it involved "Electrification Engineering." In response to the Director's request for evidence (RFE), the Petitioner stated that the Beneficiary planned to "continue working on electrification and endeavor to transform batteries powering electrical vehicles to be safer, more reliable, and affordable through designing and developing cutting edge technology and diligent testing of batteries." The Petitioner further asserted that the Beneficiary "will accomplish this through promoting safer and easier to industrialize product designs, introducing highly automated test processes, more advanced detection instruments and more refined electrochemical detection methodologies."

The Petitioner submitted an April 2024 letter from C-S-, its Product Interface Manager for the manufacture of battery and fuel cells, stating:

² As the Petitioner is applying for a waiver of the job offer requirement, it is not necessary for the Beneficiary to have a job offer from a specific employer. However, we will consider information about her position to illustrate the capacity in which she intends to work in order to determine whether the proposed endeavor meets the requirements of the *Dhanasar* framework.

[The Beneficiary] supports a cross-functional engineering team in the development and refinement of the production electrical test process and the execution of procurement of the assembly equipment and tooling and installation, debug and launch. She develops production assembly testing processes, layout concepts, and continuous refinement as the process transitions to the execution phase. [The Beneficiary] develops test system statement of requirements and complementing buy-off checklist. She works with equipment suppliers in the design, assembly, and buy-off of a production capable system. [The Beneficiary] works with our installation team in installation, debugging, and buy-off of equipment in the plant. She supports plant build events and documents/resolves build issues.

A. Substantial Merit and National Importance

The first *Dhanasar* prong, substantial merit and national importance, focuses on the specific endeavor that the individual proposes to undertake. *Dhanasar*, 26 I&N Dec. at 889. The endeavor's merit may be demonstrated in a range of areas such as business, entrepreneurialism, science, technology, culture, health, or education. *Id.* The Director determined the Beneficiary's proposed endeavor has substantial merit. We agree.

The Director concluded, however, that the Petitioner did not establish the national importance of the Beneficiary's proposed endeavor. In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Id.* at 889. This consideration may include whether the proposed endeavor has significant potential to employ U.S. workers (particularly in an economically depressed area), has other substantial positive economic effects, has national or even global implications within the field, or has other broader implications indicating national importance. *Id.* at 889-90. The Director determined the Petitioner did not establish the potential prospective impact of the Beneficiary's proposed work.

On appeal, the Petitioner asserts that the Beneficiary's proposed endeavor stands to "have national implications within the field of Electric Vehicles (EV) and Battery Safety," "impact the ability of the U.S. to remain globally economically competitive in the automotive markets," and "broadly enhance societal welfare specific to carbon emission reduction and U.S. public safety." In addition, the Petitioner argues that the Beneficiary's undertaking affects U.S. initiatives relating to "renewable energy sources, next-generation battery cell technology, and overall battery safety and performance." The Petitioner points to a September 2024 letter from L-S-, its Supervisor of Verification and Testing Systems, GPS ME, provided in response to the RFE. Regarding the importance of the Beneficiary's work, L-S- listed the following reasons:

1. Safety - [The Beneficiary] ensures the safety of electric vehicle's batteries through rigorous testing of the RESS (Rechargeable Energy Storage System), ensuring that these highly sensitive batteries are safe to use and ready for production. She also problem solves when there are other emergencies with Batteries, such as addressing the root cause of the [REDACTED]
2. Electrification - Without safe batteries, there is no other way to power an electric vehicle. They store electricity to power the vehicle's electric motor, which moves the wheels. The battery is what makes these vehicles sustainable, what releases it from its

dependence on fossil fuels. This clearly advances the goals of decreasing carbon emissions and pursuing sustainable energy sources.

3. Advancement of the Automotive Industry - Leading the team in efficient battery design and handling is crucial to advance the automotive industry in the U.S. and its competitiveness in the global market. If American manufacturers cannot compete with the low prices of their competitors. Furthermore, enforcing [redacted] ensures high-quality and reliable automotive products, bolstering consumer confidence and a willingness to embrace EVs.
4. Economic Impact - Successful product launches and the efficient management of projects can lead to increased production capacity, potentially creating new job and securing those that already exist. If American manufacturers cannot compete with the low prices of their competitors, the automotive sector will be dominated by the overseas competitors.
5. Technological Leadership - This role contributes to the advancement of EV technologies in the U.S. by propelling battery design forward and leading automation initiatives. It also contributes to the economic stability of auto manufacturers, as mentioned above.

The Petitioner also contends that the Director's decision disregarded information in the letter from C-S-, who asserted that the "impact of [the Beneficiary's] contributions goes beyond our organization, setting new benchmarks for the field of electric vehicles." The Petitioner, however, has not shown the Beneficiary's specific projects as a Senior Electrical Test Process Engineer stand to impact U.S. battery safety and sustainability initiatives, advancement of our automotive industry, or our nation's economy and technical leadership to an extent that her proposed work holds national importance. While the Beneficiary's proposed work may affect the Petitioner's electrification and testing processes, the Petitioner has not demonstrated her undertaking's broader implications in the field or industry. It is insufficient to claim a proposed endeavor has national importance or would create a broad impact without providing evidence to substantiate such claims.

The record also includes an April 2024 letter from H-I-, who previously worked for the Petitioner as a Battery Pre-Production Operations Manager and in other managerial and engineering capacities. H-I- indicated that he first met the Beneficiary "in 2016 when she worked for [the Petitioner] as a Technical Lead - Battery Test." H-I- further stated:

In this role, [the Beneficiary] led battery projects launch for battery leak/electrical test process development, test equipment sourcing, design validation and equipment buy off She developed new test processes and new method innovation and evaluation. [The Beneficiary] reviewed battery failures by troubleshooting, battery disassemble, and tear down for repairing and problem solving. She acted as a Project Engineer for special requirement parts (thermal pack etc.) and prototype pack builds.

The Beneficiary's skills, knowledge, and prior work in her field relate to the second prong of the *Dhanasar* framework, which "shifts the focus from the proposed endeavor to the foreign national." *Id.* at 890. The issue here is whether the specific endeavor that she proposes to undertake has national importance under *Dhanasar*'s first prong.

The Petitioner also provided an “Analysis and Advisory Evaluation” letter from Dr. H-D-, Associate Professor at the [REDACTED] in support of the Beneficiary’s national interest waiver. Dr. H-D- contends that the Beneficiary’s proposed work is of national importance because her generic occupation of automotive engineer and the industry in which she works stand to benefit the U.S. economy. The issue here, however, is not the national importance of the profession or industry in which the individual will work; instead, we focus on the “the specific endeavor that the foreign national proposes to undertake.” *Dhanasar*, 26 I&N Dec. at 889. The letters from Dr. H-D-, C-S-, H-I-, and L-S- do not contain sufficient information and explanation, nor does the record include adequate corroborating evidence, to show that the Beneficiary’s specific proposed work offers broader implications in her field or industry or substantial positive economic effects for our nation that rise to the level of national importance.

Furthermore, the Petitioner submitted articles on the importance of electrification engineering, automotive engineering, automated safety technologies, software-defined vehicles, the automotive industry, battery engineers, the Petitioner’s U.S. economic impact, clean vehicles, and EVs. The record also includes information about U.S. critical infrastructure sectors, critical and emerging technologies, the Bipartisan Infrastructure Law, and protecting the U.S. automotive industry. The Petitioner claims that these articles support the national importance of the Beneficiary’s proposed endeavor. The determination of national importance does not focus on the importance of one’s field or industry in general, but “focuses on the specific endeavor that the foreign national proposes to undertake.” *Id.* at 889. Here, none of the articles mention the Beneficiary or her assigned projects, or otherwise speak to the potential prospective impact of her specific proposed endeavor.

While the Petitioner states on appeal that “millions of Americans drive or ride in its vehicles” and that it “has long been a pillar of the nation’s economy,” it has not demonstrated that the economic implications and technological advancements resulting from its overall operations would be attributable to the Beneficiary’s particular role as a Senior Electrical Test Process Engineer to an extent that her specific proposed work holds national importance. The Petitioner further claims that the Beneficiary’s proposed “endeavor is critical for ensuring the safe production and use of battery technology through electric vehicles” and “is absolutely necessary to ensuring reliability and safety protections to consumers,” but the evidence does not show that her proposed work stands to offer broader implications in her field or industry beyond her projects for the Petitioner.

To evaluate whether the Beneficiary’s proposed endeavor satisfies the national importance requirement we look to evidence documenting the “potential prospective impact” of her work. *Id.* at 889. While the Petitioner’s statements reflect the Beneficiary’s intention to improve her employer’s EV battery testing processes, it has not offered sufficient information and evidence to demonstrate that the prospective impact of her proposed endeavor rises to the level of national importance. In *Dhanasar*, we determined that the petitioner’s teaching activities did not rise to the level of having national importance because they would not impact his field more broadly. *Id.* at 893. Here, we conclude the record does not show that the Beneficiary’s specific proposed endeavor stands to sufficiently extend beyond her employer and its operations to impact the field of electrification engineering, the U.S. EV industry, societal welfare, public safety, or our country’s economy more broadly at a level commensurate with national importance. Nor has the Petitioner demonstrated that the Beneficiary’s specific undertaking offers broader implications in the automotive manufacturing or renewable energy industries.

Additionally, the Petitioner has not shown that the specific endeavor the Beneficiary proposes to undertake has significant potential to employ U.S. workers or otherwise offers substantial positive economic effects for our nation. While the Petitioner asserts that the national importance of the Beneficiary's endeavor is evident from the scope of its vehicle manufacturing operations, it has not demonstrated that the economic implications of its vehicle sales would be attributable to the Petitioner's specific projects to an extent that her proposed work holds national importance. Here, the Petitioner has not shown that the wider economic effects it claims are implications of the Beneficiary's specific proposed endeavor to improve her employer's EV battery testing processes. Without sufficient information or evidence regarding any projected U.S. economic impact or job creation attributable to the Beneficiary's specific proposed work, the Petitioner has not shown that the benefits to the U.S. regional or national economy resulting from her projects would reach the level of "substantial positive economic effects" contemplated by *Dhanasar*. *Id.* at 890.

The Petitioner has not established that the Beneficiary's proposed endeavor has significant potential to employ U.S. workers (particularly in an economically depressed area), has other substantial positive economic effects, has national or even global implications within the field or industry, or has other broader implications indicating national importance.

B. The Remaining *Dhanasar* Prongs

Because the documentation in the record does not establish the national importance of the Beneficiary's proposed endeavor as required by the first prong of the *Dhanasar* precedent decision, the Petitioner has not demonstrated her eligibility for a national interest waiver. As this issue is dispositive of the Petitioner's appeal, we need not reach, and therefore reserve, determination of the Beneficiary's eligibility under the second and third prongs of the *Dhanasar* framework. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision).

III. CONCLUSION

As the Beneficiary has not met the requisite first prong of the *Dhanasar* analytical framework, we conclude that the Petitioner has not established she is eligible for or otherwise merits a national interest waiver as a matter of discretion. The appeal will be dismissed for the above stated reasons, with each considered as an independent and alternate basis for the decision.

ORDER: The appeal is dismissed.